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SUPERIOR

COURT OF CALIFORNIA, COUNTY OF LOS ANGELES

Civil

Division

Central

District, Stanley Mosk Courthouse, Department 311

Tentative

Ruling

26STCV17549

ARACELI

RAMIREZ vs FASHION NOVA, LLC, et al.

September

23, 2026

8:30

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NATURE OF PROCEEDINGS:

DEFENDANT FASHION NOVA, LLC'S MOTION TO COMPEL ARBITRATION.

RULING:

The Court denies the Motion.

Plaintiff to give notice.

I.

BACKGROUND

On June 1, 2026, ARACELI RAMIREZ (Plaintiff) filed a Complaint against FASHION NOVA, LLC and SARAH HAN (Defendants), listing Causes of Action for:

(1)

ASSOCIATIONAL DISABILITY DISCRIMINATION IN VIOLATION OF FEHA;

(2) RETALIATION IN VIOLATION OF FEHA;

(3)

FAILURE TO ENGAGE IN THE INTERACTIVE PROCESS IN VIOLATION OF FEHA;

(4)

FAILURE TO PROVIDE REASONABLE ACCOMMODATION IN VIOLATION OF FEHA;

(5) RETALIATION FOR REQUESTING ACCOMMODATION
IN VIOLATION OF FEHA;

(6) FAILURE TO PREVENT DISCRIMINATION AND
RETALIATION IN VIOLATION OF FEHA;

(7) VIOLATION OF CFRA RIGHTS;

(8) CFRA RETALIATION;

(9) WRONGFUL TERMINATION IN VIOLATION OF
PUBLIC POLICY;

(10)

INTENTIONAL INFLICTION OF EMOTIONAL DISTRESS;

(11)

FAILURE TO PRODUCE PERSONNEL RECORDS (CAL. LAB. CODE § 1198.5); and,

(12)

FAILURE TO PRODUCE PAYROLL RECORDS (CAL. LAB. CODE § 226).

Plaintiff alleges that Defendants wrongfully terminated her employment as Production Manager, two days after she requested protected medical leave to care for her ill mother.

On August 24, 2026, FASHION NOVA, LLC (Defendant) filed the Motion to Compel Arbitration, on grounds that she electronically signed a Mutual Agreement to Arbitrate Employment-Related Disputes.

Plaintiff's Opposition raises several issues, including electronic signature authentication, unconscionability, agreement scope, and co-Defendant as nonsignatory.

II.

LEGAL STANDARD

Federal law applies to arbitration provisions in contracts involving interstate commerce. (Higgins v. Superior Court (2006) 140 Cal.App.4th 1238, 1247.) "Even when the Federal Arbitration Act applies, state law governs such matters as who is bound by and who may enforce an arbitration agreement." (Thomas v. Westlake (2012) 204 Cal.App.4th 605, 614, fn. 7.)

Parties

petitioning to compel arbitration have the burden to prove the existence of a valid arbitration agreement by a preponderance of evidence, and parties opposing have the burden to prove by a preponderance of the evidence any fact necessary to a defense. (Gonzalez v. Nowhere Beverly Hills LLC (2024) 107 Cal.App.5th 111, 121.)

III.

EVIDENTIARY OBJECTIONS

As to motions to compel arbitration, where parties objected to evidence, and the court does not rule on them, then appellate courts will presume that the evidence was admitted. (Valentine

v. Plum Healthcare Grp., LLC (2019) 37 Cal.App.5th 1076, 1089.)

Where the facts stated in

a declaration do not show personal knowledge, a bare statement that the affiant has personal knowledge, and can testify, is incompetent proof. (Snider v. Snider (1962) 200 Cal.App.2d 741, 754.)

Courts have broad

discretion in determining whether witnesses are qualified to testify concerning “the identity and mode of preparation” of business records, to permit a determination that “[t]he sources of information and method and time of preparation were such as to indicate its trustworthiness.” (Sierra Managed Asset Plan, LLC v. Hale (2015) 240 Cal.App.4th Supp. 1, 9 [declaration and testimony that an assignee received business records falls short of necessary foundation]. Accord, Grail Semiconductor, Inc. v. Mitsubishi Electric & Electronics USA, Inc. (2014) 225 Cal.App.4th 786, 798.) To establish admissibility, based on the business records exception to the hearsay rule, a witness having personal knowledge of the transaction or event, need not testify, but instead any qualified witness familiar with the procedures followed, may testify. (Jazayeri v. Mao (2009) 174 Cal.App.4th 301, 322.) “The witness need not have been present at every transaction to establish the business records exception; he or she need only be familiar with the procedures followed” (Midland Funding LLC v. Romero (2016) 5 Cal.App.5th Supp. 1, 8.)

The Court sustains all

eight evidentiary objections Plaintiff filed on September 10, 2026, and further addresses witness competency below.

IV.

JUDICIAL NOTICE

Materials prepared by

private parties that are on file with governmental agencies, such as the Secretary of State, are not official records of which judicial notice may be taken. (People v. Thacker (1985) 175 Cal.App.3d 594, 598-599; Stevens v. Superior Court (1999) 75 Cal.App.4th 594, 608.)

Given the

above-referenced law, the Court denies Defendant's request to take judicial notice of Limited Liability Company Articles of Organization filed with the Secretary

of State on December 31, 2020, by Fashion Nova, LLC.

As a result, there remains
no basis to support a determination that the differently named entities are the
same contracting employer.

V.

ANALYSIS

Defendant states that, on
December 14, 2018, the Arbitration Agreement was sent to Plaintiff's personal
email address and signed shortly thereafter using a computer system.
Defendant's Reply counters the opposing arguments.

Plaintiff raises issues
including the following:

1.

Plaintiff does not recall seeing or
signing any emailed arbitration agreement, and could not find any by searching
emails.

2.

Defendant failed to evidence the agreement
with any competent authentication.

3.

No arbitration agreement was in the
personnel file that Defendant produced in response to Plaintiff's statutory
demand.

4.

The arbitrator delegation clause does not
override the Court's determination of assent, and is unconscionable.

5.

The arbitration agreement shows Fashion
Nova, Inc. as signatory, not Defendant Fashion Nova, LLP.

6.

Defendant never explained arbitration aspects.

7.

No arbitration rules were incorporated.

8.

There are a third party and a possibility of conflicting rulings.

9.

The eleventh and twelfth causes of action are based upon post-employment conduct and hence outside the scope of arbitration.

10.

The attorneys' fees provision violates FEHA law.

11. Severance

is inappropriate where the central purpose is tainted with illegality.

12. Alternatively,

the Court should allow discovery followed by an evidentiary hearing.

Parties seeking to compel

arbitration meet their initial burden simply by reciting the terms of the governing provision, or by attaching a copy of the provisions, unless there is a dispute over authenticity that is beyond merely contesting the preliminary showing. (Sprunk v. Prisma LLC (2017)

14 Cal.App.5th 785, 793; Ruiz v. Moss

Bros. Auto Group, Inc. (2014) 232 Cal.App.4th 836, 846 ["In the face of ...

failure to recall signing ... had the burden of proving by a preponderance of the evidence that the electronic signature was authentic...."]. See also Iyere v. Wise Auto Grp. (2023) 87 Cal.App.5th 747, 758 ["If a party confronted with his or her handwritten signature on an arbitration agreement is unable to allege that the signature is inauthentic or forged, the fact that that person does not recall signing the agreement neither creates a factual dispute as to the signature's authenticity nor affords an independent basis to find that a contract was not formed."]; Espejo v. So. Cal. Permanente Med. Group

(2016) 246 Cal.App.4th 1047, 1060 ["defendants ... met their initial burden by attaching to their petition a copy of the purported arbitration agreement bearing ... electronic signature. Once ... challenged ..., defendants were then required to establish by a preponderance of the evidence that the signature was authentic."].)

The

business records exception to the hearsay rule differs from authentication of contracts or other writings that instead involve the " 'introduction of evidence sufficient to sustain a finding that it is the writing that the proponent of the evidence claims it is.' " (Vargas v. Gallizzi (2023) 96 Cal.App.5th 362, 371–372, fns. 5, 6.) Hence, Defendant cannot rely solely upon business records to show contracting.

"Evidence

Code section 1417, states, 'The genuineness of handwriting, or the lack thereof, may be proved by a comparison made by the trier of fact with handwriting (a) which the court finds was admitted or treated as genuine by the party against whom the evidence is offered or (b) otherwise proved to be genuine to the satisfaction of the court.'" (People v. Rodriguez (2005) 133 Cal.App.4th 545, 552.) Comparisons of signatures or other handwriting need not be made by a witness or an expert, but instead the trial judge or other trier of fact may make the comparison. (Devereaux v. Frazier Mountain Park & Fisheries Co. (1967) 248 Cal.App.2d 323, 330.) An agreement's signature can be shown by having a judge compare a genuine signature to that on an agreement, or by a declaration of a custodian of records. (Gamboa v. Ne. Cmty. Clinic (2021) 72 Cal.App.5th 158, 170 [proponent of arbitration failed to file any such authenticating proof, including because agreement's signature and declaration signature had some dissimilarities].)

"Civil

Code section 1633.9 addresses how a proponent of an electronic signature may authenticate 'The act of the person may be shown in any manner, including a showing of the efficacy of any security procedure applied to determine the person to which the electronic record or electronic signature was attributable.'" (Ruiz v. Moss Bros. Auto Group, Inc. (2014) 232 Cal.App.4th 836, 843 Accord, Espejo v. S. California Permanente Med. Grp. (2016) 246 Cal.App.4th 1047, 1062 [factual details to properly authenticated electronic signature, such as using security, passwords, time and IP address]; J.B.B. Investment Partners, Ltd. v. Fair (2014) 232 Cal.App.4th 974, 989

[insufficient proof to show party printed name at the end of e-mail with any intent to formalize electronic transaction].) For showing an electronic signature, a declaration did not detail the security precautions as to use of the username and password; the arbitration agreement time or IP address, creation within the computer system. (See *Garcia v. Stoneledge Furniture LLC* (2024) 102 Cal.App.5th 41, 54.) Electronic signatures are attributable to a person if done by the person's act, which may be shown in any manner, including the efficacy of a security procedure. (*Perez v. Kaiser Found. Health Plan, Inc.* (2023) 91 Cal.App.5th 645, 652 [regarding enforceable arbitration agreement].)

Here, Defendant properly filed the Arbitration Agreement with the Motion (Rosley Garcia Declaration, filed 8-24-26, ¶¶ 5, 6; and Exhibit A). However, because Plaintiff declared a lack of recollection of encountering the electronic agreement, Defendant has incurred the burden of proving by a preponderance of evidence that the electronic signature was authentic.

In that regard, the Reply Declaration of Rosely Garcia, including paragraph 2, shows that she became employed by Fashion Nova, LLC in November 2024, which means that she would have no way of knowing the procedures followed and the technology systems' features when Plaintiff began employment in 2018 with Fashion Nova, Inc. Instead, the declarant relies upon inherited business records from years past, without personal knowledge of the procedures used back then to create business records or computer records. Further, the reported computer system authentication, based upon Plaintiff's email address, lacks trustworthiness as addressed in published opinions cited above, such as details about security precautions to exclude input of employer agents, usernames, and passwords. The Reply, at page 4, acknowledges further details involved in such opinions addressing electronic signatures.

While the signatures made available for comparison, including one on Plaintiff's own Declaration, do appear to be very similar, the Court finds that the unusually minimal security precautions that Defendant describes do not suffice to identify Plaintiff, or to rule out the possibility of electronic signature forgery or technological error.

Further, there is no Declaration by anyone technologically knowledgeable about the computer systems "Greenhouse" and "HelloSign," as they were at the time of use in 2018. (Cf. Fabian

v. Renovate Am., Inc. (2019) 42

Cal.App.5th 1062, 1069 ["did not provide any evidence from or about DocuSign in its petition,..."].)

Because the Court does

not find sufficient proof of Plaintiff's assent to the Arbitration Agreement,

it need not further address the unconscionability issues raised. However, the

Court will briefly note that (1) employers' failing to explain can constitute

procedural unconscionability (Gentry v.

Superior Court (2007) 42 Cal.4th 443, 470; Htay Htay Chin v. Advanced Fresh Concepts Franchise Corp. (2011)

194 Cal.App.4th 704, 710), (2) agreements need not incorporate arbitration

rules because arbitration is automatically controlled by the California

Arbitration Act (Cruise v. Kroger Co.

(2015) 233 Cal.App.4th 390, 399-400), (3) even where valid delegation clauses

clearly and unmistakably provide arbitrators have authority to resolve all

disputes the issue of parties' entering into an agreement is for courts to

decide (Mendoza v. Trans Valley Transp. (2022) 75 Cal.App.5th 748, 776),

and (4) unconscionable provisions may be severed, and the remainder of the

arbitration agreement enforced (Fittante v. Palm Springs Motors, Inc.

(2003) 105 Cal.App.4th 708, 726).

Similarly, the Court need

not address whether the scope of the arbitration agreement covers all claims

but opines that all Plaintiff's claims fall within the scope because all are

related to employment, whether during employment or after termination. (See

generally California Correctional Peace

Officers Ass'n v. State (2006) 142 Cal.App.4th 198, 205.)

Next, the Court need not

reach the issue of SARAH HAN (co-Defendant) inconsistently proceeding in court

during Defendant's arbitration, since co-Defendant theoretically could move to

compel arbitration after service of summons, and she appears to be covered by

the agreement listing managers, supervisors, and other categories of

nonsignatories, as beneficiaries. (See generally Laswell v. AG Seal Beach, LLC (2010) 189 Cal.App.4th 1399, 1405.)

Lastly, attorneys' fees

provisions, contrary to FEHA, may be severed and not enforced. (E.g., Ramirez v. Charter Commc'ns, Inc. (2024)

16 Cal.5th 478, 541.)

VI.

CONCLUSION

Therefore, the Court denies the Motion, based upon the issues of objectionable evidence and judicial notice, and insufficient proof of Plaintiff's electronic assent.

Finally, the Court determines that Plaintiff's alternative requests for discovery and a hearing regarding arbitration, are moot, after the ruling denying arbitration, but are authorized possibilities. (See generally Bouton v. USAA Cas. Ins. Co. (2008) 167 Cal.App.4th 412, 427–428; Warfield, v. Summerville Senior Living, Inc. (2007) 158 Cal.App.4th 443, 446.)